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|   |                                         | <p>claim under the PAGA released by this Settlement.” Must be amended to state: “The Settlement <b>may</b> bar you and any Aggrieved Employee covered by this Agreement (including you) <b>as a matter of law</b> from proceeding with any claim under the PAGA released by this Settlement.” (Cover Letter at p. 2.)</p> <p>Plaintiff is ordered to give notice of the ruling to the LWDA and Defendants.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 6 | 30-2021-01198053<br>Brown vs. CBD, Inc. | <p>Plaintiff Arik Brown’s (“Plaintiff”) Motion for Terminating and Monetary Sanctions against Defendant CBD, Inc. (“Defendant”) is <b>GRANTED</b>.</p> <p>On August 8, 2025, the court granted Plaintiff’s motion to compel further discovery responses from Defendant, and granted monetary sanctions in the amount of \$10,000.00 in favor of Plaintiff and against Defendant and its counsel. When Defendant failed to comply with the August 8, 2025 Order, the court denied plaintiff’s motion for terminating sanctions and compelled further responses with further monetary sanctions in the amount of \$5,000.00 in favor of Plaintiff and against Defendant and its counsel. Plaintiff now brings this motion for terminating, issue and/or monetary sanctions again because Defendant has still failed to provide further responses, including paystubs and mileage data, despite agreeing to do so at a December 11, 2025 informal discovery conference.</p> <p>“[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal. App. 4th 486, 496 [finding terminating sanctions appropriate when conduct “intruded into the area of actual fraud” and the “record demonstrates repeated violations of stipulations and court orders, a forged document offered as true, and deliberate destruction of evidence pertinent to exposing that fact”].) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal. App. 4th 262, 279–80.)</p> <p>“If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that</p> |

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|  |  | <p>will curb the abuse.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal. App. 4th 967, 992.) “When a party fails to respond to the opposing party's interrogatories, the court should begin by imposing monetary sanctions and ordering the party to respond.” (<i>Moofly Prods., LLC v. Favila</i> (2020) 46 Cal. App. 5th 1, 11.) “If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction.” (<i>Id.</i>) “In general, a court may not impose issue, evidence, or terminating sanctions unless a party disobeys a court order.” (<i>Id.</i>) “The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party's discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (<i>Id.</i>) “In addition, terminating sanctions are appropriate only if a party's failure to obey a court order actually prejudiced the opposing party.” (<i>Id.</i>)</p> <p>Here, terminating sanctions are appropriate as defendant has violated <b>two</b> court orders to supply further responses and documents and its own promise to provide the responses and documents given at an IDC. The plaintiff has been forced to move for terminating sanctions two times. The first time the court denied the motion, opting for additional monetary sanctions and warning that continued violations would merit additional sanctions. Despite this clear warning, defendant failed to provide any additional responses or documents. Further, the court finds that plaintiff has been severely prejudiced by defendant’s multi-year discovery violations as the responses and documents sought go to the heart of plaintiff’s case. Finally, it is relevant that defendant did not respond to this motion or even attempt to provide a showing that any lesser sanction would elicit the responses and documents to which plaintiff is entitled. Thus, it is necessary for the court to grant the terminating sanctions.</p> <p>Based on this ruling, the court <b>STRIKES</b> defendant’s answer to the operative complaint. If plaintiff wishes to enter default, plaintiff must seek this separately.</p> <p>The court also <b>GRANTS</b> Plaintiff’s request for \$3,500.00 in monetary sanctions for the expenses incurred in bringing this Motion. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$3,500.00 (in addition to the previous \$10,000.00 and \$5,000.00 in sanctions ordered by the</p> |
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|   |                                                | <p>court) is payable to Plaintiff jointly and severally by Defendant and its counsel.</p> <p>Plaintiff is ordered to give notice of this ruling to Defendants.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 7 | 30-2022-01268543<br>Garcia vs. Medina<br>Lopez | <p>Defendant Wilo's Express Inc. ("Wilo's") and Hugo Alexandro Median Lopez ("Lopez") (collectively, "Defendants") Motion to Dismiss the Action for Failure to Prosecute is <b>GRANTED</b>. This action is <b>DISMISSED WITHOUT PREJUDICE</b>.</p> <p>This action was filed on July 6, 2022. (ROA 2.) On September 5, 2024 (ROA 76), Plaintiffs filed a Notice of Settlement stating that the settlement was "Unconditional," not "Conditional."</p> <p>"Except as provided in (c) [conditional settlements] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case." (Cal. R. Ct., R. 3.1385(b).) "If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (Id.) "If the settlement of the case involves the compromise of the claim of a minor or person with a disability, the court must not hold an order to show cause hearing under (b) before the court has held a hearing to approve the settlement, provided the parties have filed appropriate papers to seek court approval of the settlement." (Cal. R. Ct., R. 3.1385(d).) Plaintiffs never filed a request for dismissal of the entire case and never filed any motion for approval of the settlement of the minors' claims.</p> <p>On September 13, 2024, the court issued an Order to Show Cause re: Dismissal on Settled Case scheduled for 10/16/2024 at 09:00 AM in Department C16. (ROA 80.) On October 16, 2024, the Order to Show Cause re: Dismissal on Settled Case was continued to 01/14/2025 at 09:00 AM in Department C16 pursuant to party's motion. (ROA 83.) On January 14, 2025, there were no appearances by any party so the court dismissed the case in its entirety for Failure to Appear. (ROA 86.) The court ordered the entire action dismissed without prejudice. (Id.)</p> <p>On September 8, 2025, the court granted Plaintiffs' Motion to Set Aside Order Dismissing this Matter for Failure to Appear At</p> |